

25PSCV04088 25PSCV04088

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Case Number: 25PSCV04088 Hearing Date: June 29, 2026 Dept: H

Mendoza v. Escalante, et al., Case

No. 25PSCV04088

ORDER ON

SPECIAL MOTION TO STRIKE AND DEMURRER

1. Plaintiff/Cross-Defendant Walter Mendoza's

Special Motion to Strike Martha Escalante's Cross-Complaint is GRANTED.

2. Plaintiff/Cross-Defendant Walter Mendoza's

Demurrer to Cross-Complaint is DENIED as MOOT.

Background

Plaintiff

Walter Mendoza ("Mendoza") alleges as follows:

Mendoza

is the owner of the property located at 1257 E Wingate St. in Covina ("subject property") via an interspousal transfer grant deed dated February 22, 2012. On February 23, 2023, Mendoza, on the one hand, and Martha Escalante ("Escalante"), Jarren Record ("J. Record"), Andrew Record ("A. Record"), Cameron Record ("C. Record"), on the other hand, entered into a written residential lease agreement in which Escalante, J. Record, A. Record, and C. Record agreed to rent the subject property for no monthly rent payments and a 2-year term expiring February 23, 2025. On May 5, 2025, Mendoza served Escalante, J. Record, A. Record, and C. Record with a 30-day notice to vacate. They have failed to vacate. Mendoza discovered that Escalante, J. Record, A. Record, and C. Record

have a forged lease agreement stating a 10-year term, rent free, commencing February 23, 2023 through March 1, 2033.

On

November 12, 2025, Plaintiff filed a complaint, asserting causes of action against Escalante, J. Record, A. Record, C. Record, and Does 1-25 for: (1) Breach of Contract, (2) Intentional Misrepresentation, (3) Ejectment, (4) Trespass, and (5) Cancellation of Instruments.

On

December 30, 2025, Escalante filed a cross-complaint, asserting causes of action against Mendoza and Roes 1-25 for: (1) Breach of Contract, (2) Promissory Estoppel, (3) Intentional and Negligent Infliction of Emotional Distress, and (4) Declaratory Relief.

On

March 30, 2026, Mendoza filed an "Amendment to Complaint," wherein Yanira Guadalupe Lopez aka Yanira Rivas was named in lieu of Doe 1.

A Case

Management Conference is set for June 29, 2026.

1.

Special Motion to Strike

Legal

Standard

"A special motion to strike under section

425.16—the so-called anti-SLAPP statute—allows a defendant to seek early

dismissal of a lawsuit that qualifies as a SLAPP." (Nygard, Inc. v. Uusi-Kerttula (2008) 159 Cal.App.4th 1027, 1035.) A SLAPP, or "strategic lawsuit against

participation," is "[a] cause of action against a person arising from any act

of that person in furtherance of the person's right of petition or free speech

under the United States of California Constitution in connection with a

public issue." (Id.; Code Civ. Proc., § 425.16, subd. (b)(1).)

Such an act includes "(1) any written or oral statement or writing made

before a legislative, executive, or judicial proceeding, or any other official

proceeding authorized by law, (2) any written or oral statement or writing made

in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.”

(Code Civ. Proc., § 425.16, subd. (e).)

To fall under the protection of section 425.16, subdivision (e)(1) and (2), the statements need not concern an issue of public interest. All that matters is that the statements be made in an official proceeding or in connection with an issue being reviewed by an official proceeding. (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1116, 1123.)

“When determining whether to grant an anti-SLAPP motion, the trial court engages in a two-step process. First the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. If the court finds such a showing has been made, it then must consider whether the plaintiff has demonstrated a probability of prevailing on the claim.” (*Kronemyer v. Internet Movie Database Inc.* (2007) 150 Cal.App.4th 941, 946 [internal quotations and citations omitted].)

“In making its determination, the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc., § 425.16, subd. (b)(2).)

Discussion

Mendoza

moves the Court, pursuant to Code of Civil Procedure section 425.16, for an order striking Escalante's cross-complaint, on the basis that it arises from Mendoza's constitutionally protected right of free speech and petition and that Escalante cannot establish a probability of prevailing on the merits of her claims. Mendoza seeks attorney's fees and costs via a motion to be filed separately.

Request for Judicial Notice

The Court rules on Mendoza's Request for Judicial Notice as follows: Granted as Exhibit 1 (i.e., 30-Day Notice to Vacate [Exhibit 2 to Mendoza's complaint]); Granted as to Exhibit 2 (i.e., Unlawful Detainer Complaint filed June 18, 2025 in case styled Mendoza v. Escalante, et al., Case No. 25WCUD01083 ["UD Action"]); and Granted as to Exhibit 3 (i.e., Request for Dismissal filed November 12, 2025 in the UD Action).

Merits

Escalante's Cross-Complaint
Arises from Protected Activity

"The statutory phrase 'cause of action. . . arising from' means simply that the defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech. In the anti-SLAPP context, the critical point is whether the plaintiff's cause of action itself was based on an act in furtherance of the defendant's right of petition or free speech." (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78.)

"Whether the statute applies is determined from the 'principal thrust or gravamen' of the plaintiff's claim. For this reason, the sequence in which actions are filed is not determinative of whether a lawsuit is a prohibited suit. The mere fact that a lawsuit was filed after the defendant engaged in protected activity does not establish the complaint "arose from" protected activity under the statute because a cause of action may be triggered by protected activity without arising from it." (Ben-Shahar v. Pickart (2014) 231 Cal.App.4th 1043, 1051 [citations omitted; emphasis theirs].)

"Numerous anti-SLAPP cases have discussed a landlord's unlawful detainer action that is followed by a tenant's lawsuit. Unless the sole basis of liability asserted in the tenant's complaint is the filing and prosecution of the unlawful detainer action, the tenant's action will not be targeted at protected activity." (Id.) Where, however, the action is predicated upon conduct distinct from the prosecution of unlawful detainer action—even though the complaint is based upon the unlawful detainer action or arises from it—the tenant's action is not targeted at protected activity and thus does not meet the first prong of the anti-SLAPP

analysis. (Id. at 1052.)

On June 18, 2025, Mendoza filed an unlawful detainer complaint against Escalante, J. Record, A. Record, C. Record, All Other Unknown Occupants in Possession, and Does 1-10 regarding the subject property. (RJN, Exh. 2.) On November 12, 2025, Mendoza dismissed the UD Action (RJN, Exh. 3); that same day, Mendoza filed a complaint in the instant case against Escalante, J. Record, A. Record, C. Record, and Does 1-25 for (1) Breach of Contract, (2) Intentional Misrepresentation, (3) Ejectment, (4) Trespass, and (5) Cancellation of Instruments.

In the underlying complaint, Mendoza alleges that he entered into a written residential lease agreement ("Agreement") with Escalante, J. Record, A. Record, and C. Record (hereinafter collectively, "Defendants") on or about February 23, 2023 (Complaint, ¶ 11); that Defendants agreed therein to rent the subject property for no monthly rent payments and a 2-year term expiring on February 23, 2025 (Id.); that the original copy of the Agreement was provided to Defendants and he did not keep a copy (Id., ¶ 14); that on May 5, 2025, after the term of the Agreement expired, he served Defendants with a 30-day notice to vacate (Id., ¶ 15, Exh. 2); that Defendants have failed to vacate the subject property and remain in possession (Id., ¶ 16); that Mendoza has discovered Defendants have a forged lease agreement ("Forged Agreement") which provides for a 10-year, rent free, term expiring on March 1, 2033 (Id., ¶ 17, Exh. 4); that the Forged Agreement also states that Mendoza agreed to be responsible for maintenance expenses and all household bills under his and Martha's names except for electricity (Id.); and that Defendants breached the Agreement by failing to vacate and perform their obligations thereunder (Id., ¶¶ 26 and 27). The complaint seeks, inter alia, a judicial declaration that the Forged Agreement is void and of no force of effect, cancellation of the Forged Agreement, restitution of possession of the subject property, lost income or use, and reasonable rental value. (Id., pp. 8-9, ¶¶ 1-15.)

On December 30, 2025, Escalante filed a cross-complaint against Mendoza and Roes 1-25 for (1) Breach of Contract, (2) Promissory Estoppel, (3) Intentional and Negligent Infliction of Emotional Distress, and (4) Declaratory Relief. Escalante alleges therein that on or about February 23, 2023, she entered into a lease

agreement with Mendoza, the subject property owner, wherein she would remain in possession of the subject residents for a term period of February 23, 2023 to and including March 1, 2023 for zero rent, no late rent fee, no security deposit (Cross-Complaint, ¶ 6); that Mendoza agreed therein to pay all utilities (Id.); that she and Mendoza had been in a committed, 18-year relationship during which they continuously resided at the subject property together with their respective children (Id., ¶ 7); that throughout the relationship, Mendoza promised to take care of her and provide long-term financial stability and support (Id., ¶ 8); that Mendoza financially supported the household during this time while she reduced her employment and assumed primary responsibility for domestic duties (Id., ¶¶ 9-12); and that Mendoza had an affair, moved out of the subject property, and voluntarily executed the aforesaid agreement to acknowledge the harm he caused and to ensure her continued stability (Id., ¶ 13). She asserts that Mendoza breached their agreement by “attempting to evict her” in 2025 by “serving a defective 30-day notice,” by subsequently filing the UD action and by “fil[ing] a civil complaint falsely alleging that [she] forged or altered the agreement.” (Id., ¶¶ 15, 16, 22, 23, 34, 43, and 44.)

The Court

determines that Mendoza has made a threshold showing that Escalante’s cross-complaint is one arising from protected activity.

Martha Has Not

Established a Probability of Prevailing

Again, once a claim is shown to fall within the ambit of the anti-SLAPP law, the burden shifts to the plaintiff (or cross-complainant) to establish a “probability” of prevailing on that claim.

In determining whether a plaintiff (or cross-complainant) has established a probability of prevailing on the claim, the court will “consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc., § 425.16, subd. (b)(2).) “In opposing an anti-SLAPP motion, the plaintiff (or cross-complainant) cannot rely on the allegations of the complaint but must produce evidence that would be admissible at trial.” (HMS Capital, Inc. v. Lawyers Title Co. (2004) 118 Cal.App.4th 204, 212 [emphasis added].)

Escalante has failed to oppose the motion;
accordingly, the Court determines that she has failed to establish a
probability of prevailing on the claim.

The
unopposed motion is granted.

2. Demurrer

The
demurrer is summarily denied as moot, based upon the ruling made on the special
motion to strike.